UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

MICHAEL E. SULLIVAN, JR., Plaintiff, v. W. MICHAEL MALOOF, JR., d/b/a THE MALOOF LAW FIRM, Defendant.	)	Civil Action Case No. 1:25-CV-02006-JPB

DEFENDANT'S RESPONSE TO PLAINTIFF'S OBJECTION TO CONSIDERATION OF DEFENDANT'S MOTION TO STRIKE [DOC. 5] DUE TO LACK OF SERVICE

COMES NOW, Defendant W. Michael Maloof, Jr., d/b/a The Maloof Law Firm, and files his Response to Plaintiff's Objection to Consideration of Defendant's Motion to Strike [Doc 5] Due to Lack of Service. Defendant shows the Court as follows:

On June 17, 2025, Defendant filed their Motion to Strike Settlement Communications Under Federal Rule of Evidence 408. At the time of filing, Defendant mistakenly listed the CM/ECF system as the method of service for the Plaintiff, as opposed to mailing the Answer and Motion to *pro-se* Plaintiff.

On July 8, 2025, Defendant mailed a copy of i) *Defendant's Answer and Affirmative Defenses to Plaintiff's Complaint*, and ii) *Defendant's Motion to Strike Settlement Communications Under Federal Rule of Evidence 408* to Plaintiff via first-class mail. Service copies of all pleadings filed by Defendant will be sent to Plaintiff via first-class mail going forward. (Doc. 12).

Defendant also notes that Plaintiff has clearly reviewed the Answer and Motion to Strike. (See Docs. 10 and 11).

Defendant stipulates that Plaintiff was not properly served with Defendant's Motion to Strike until July 8, 2025. Defendant concedes that the timeline for Plaintiff to respond to Defendant's Motion to Strike did not begin to run until July 8, 2025.

Respectfully Submitted this 11th day of July, 2025.

GUILMETTE HENDERSON, LLC
/s/ Bryan J. Henderson
Bryan J. Henderson
Georgia Bar No. 821624
William S. Cleveland
Georgia Bar No. 721593
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Counsel for Defendant

CERTIFICATE OF SERVICE AND COMPLIANCE

I hereby certify that that foregoing filing was prepared with the font type and margin requirements of Times New Roman, 14-point font, in accordance with Local Rule 5.1. I further certify that on Monday, July 14th, 2025, I will serve a copy of the foregoing via first-class mail upon the following:

Michael E. Sullivan, Jr.
3324 Peachtree Road NE, Unit 1405
Atlanta, Georgia 30326

This 11th day of July, 2025.

GUILMETTE HENDERSON, LLC
/s/ Bryan J. Henderson
Bryan J. Henderson
Georgia Bar No. 821624
William S. Cleveland
Georgia Bar No. 721593